CS (COMM.)356/20 SUPRO SECURITY SERVICE PVT LTD Vs. EXOTIC INNOVATIONS PVT LTD

04.02.2021

Present: Sh. Anuj Kumar Garg, ld. counsel for the plaintiff.

None for the defendant.

Replication along with the reply of the application under Order VII Rule 10 and 11 r/w Section 151 CPC, affidavit of admission-denial and documents filed.

It is stated that the copy has already been sent to the defendant.

The defendant had moved an application under Order VII Rule 10 and Rule 11 r/w Section 151 CPC for rejection of plaint stating that no cause of action arose within the jurisdiction of this court, defendant company is registered at Bangalore, it has been carrying on its business at Bangalore ,the alleged services of manpower supply were provided at Bangalore and Hyderabad, none of the personnel of the defendant ever visited the plaintiff company at Delhi, all the transactions and modalities were held at Bangalore and the payments were received at Bangalore. It is also stated that the plaintiff did not disclose any cause of action nor the defendant had any commercial relationship with the plaintiff and the suit is liable to be rejected.

In reply to the application, it is stated that this court has territorial jurisdiction to entertain this suit. The plaintiff has disclosed the cause of action in the plaint which is to be read while deciding the application.

I have heard ld. Counsel for the plaintiff and perused the record.

This court vide order dated 05.10.2020 had discussed the issue of territorial jurisdiction of this court and the cause of action at length and thereafter, taken the cognizance of the suit. As per the averments made in the plaint, the office of the plaintiff is at Delhi, the defendant had approached the plaintiff for providing the manpower at the office of the defendant at Delhi, the payment was also to be made at Delhi. The court also considered the case of *Satyapal v/s Slick Auto Accessories Pvt ltd, RSA No. 40/2013, decided on 05.03.2014*. In that case, the contract was entered at Delhi, it was held that once no place of payment is specified, the debtor has to seek the creditor and since the creditor/plaintiff office is at Delhi, therefore, the payment has to be made at Delhi and thus, part of cause of action arose at Delhi.

As to the cause of action, it has been mentioned that the cause of action arose on 06.12.2012 and further on various dates. The plaintiff had raised the invoices since September/October, 2019. There was exchange of emails between the parties as to the payments/GST. On 23.03.2020 also, the plaintiff had sent an email calling upon the defendant to make the payment giving the details of GST and MSME registration which was also replied by the defendant. It had sent emails on 28.03.2020 and 09.04.2020 which were replied by the defendant on 09.04.2020. There are subsequent emails and thereafter on 30.05.2020, plaintiff sent legal notice to the defendant calling upon defendant to pay the amount.

Having regards to the above facts, I am of the view that this court has territorial jurisdiction to entertain this suit. The plaintiff has also disclosed the cause of action. Order VII Rule 11 provides that the plaint

shall be rejected if it does not disclose a cause of action or barred by law. In the instant case, the plaintiff has stated how the jurisdiction of this court is made out and the cause of action.

The application being devoid of merits is dismissed with no orders as to cost.

From the pleadings of the parties, following issues are framed:

1. Whether the plaintiff is entitled to recovery of a sum of Rs. 25,78,602/- as prayed for? OPP.
2. Whether the plaintiff is entitled to interest, if so, from which date and at what rate? OPP.
3. Whether the plaintiff had manipulated and fabricated the attendance register of the manpower? OPD.
4. Relief.

No other issues arise or pressed for. Evidence affidavit be filed within 15 days from today with advance copy to opposite party.

Put up for PE on 26.04.2021 and 27.04.2021.

Defendant/its counsel be apprised of the date.

(Sanjiv Jain)
District Judge/Commercial
Court-03/ New Delhi

Note: In case any document or any judgment is to be sent, the same may be sent on the e-mail id: readerdjcc03phc@gmail.com